

Mat.App./55/2023 on 29 May, 2026

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GAHC010211042023

2026:GAU-AS:7514

IN THE GAUHATI HIGH COURT
HIGH COURT OF ASSAM, NAGALAND, MIZORAM & ARUNACHAL PRADESH)

Mat. App./55/2023

Sangita Roy,
D/o Sri Harakanta Roy,
Village-Sripurdeor,
P.O.-Adalbari,
P.S.-Mushalpur,
District-Baksa,
Assam-781372.

.....Appellant

-Versus-

Kuldip Lahkar,
S/o Sri Chakrapani Lahkar,
Village-Sripurdeor,
P.O.-Adalbari,
P.S.-Mushalpur,
District-Baksa,
Assam-781372.

.....Respondent

For Appellant 1. Mr. G.N. Sahewalla, Senior Advocate

2. Ms. K. Bhattacharya, Advocate For Respondent(s) : Mr. T. Kalita, Advocate Mat.App./55/2023
Page 1 Date of Hearing : 24.02.2026 Date of Judgment : 29.05.2026 BEFORE HON'BLE MR.
JUSTICE MRIDUL KUMAR KALITA JUDGMENT AND ORDER [1] Heard Mr. G.N. Sahewalla, the
learned senior counsel, assisted by Ms. K. Bhattacharya, the learned counsel for the appellant. Also
heard Mr. T. Kalita, the learned counsel for the respondent.

[2] This appeal under Section 28 of the Hindu Marriage Act, 1955 has been preferred by the
appellant, Smt. Sangita Roy, impugning the Judgment and Order dated 16.08.2023, passed by the

learned District Judge, Baksa, Mushalpur in T.S.(M) No. 08/2020 whereby, the prayer of dissolution of marriage between the appellant and the respondent made by the present respondent under Section 13(1),(i-

a) of the Hindu Marriage Act, 1955 was allowed.

[3] The facts relevant for consideration of the instant appeal, in brief, are that the present appellant and the respondent were married to each other on 21.01.2016 and a girl child was born out of the said wedlock on 05.01.2018. It is pertinent to mention herein that the appellant and the respondent studied in the same school and were known to each other during their school days, and they also had love affairs prior to their marriage. The marriage of the appellant to the respondent was initially not agreed to by the parents of the respondent, and there was an opposition to same.

Mat.App./55/2023 Page 2 [4] Even after marriage, there were continuous matrimonial discord between the parties, and ultimately on 09.08.2020, the appellant had to leave her matrimonial home. The appellant had also lodged FIR against the parents of the respondent and also filed several other cases against the respondent. Ultimately, the respondent approached the court of learned District Judge, Baksa, Mushalpur by filing an application under Section 13(1)(i-a) of the Hindu Marriage Act, 1955, seeking dissolution of his marriage with the appellant on the grounds of cruelty.

[5] In the divorce petition filed by the present respondent, he had alleged that the present appellant is a very arrogant, aggressive and ill-mannered lady and was one year older than the respondent. It is also alleged in the petition that when the marriage of the appellant and respondent was scheduled to be held in the month of January, 2016 and due to some family problems, it was postponed, the appellant created ruckus and showed tantrums by attempting to commit suicide by hanging herself.

[6] It is also alleged by the respondent in his divorce petition that the appellant, after her marriage with the respondent, used to stay most of the time in her maternal home and was unable to have a cordial relationship with the parents of the respondent and used to treat them in a rude and aggressive manner. It is also alleged that the appellant used to accuse the respondent of having illicit relationships even with his own elder sister and mother. It is also alleged that the appellant, on 08.08.2020, slammed her head on the floor and started to scream at the top of her voice.

Mat.App./55/2023 Page 3 [7] It is also alleged that the appellant used to threaten her in-laws of sending them to jail and, thereafter, she lodged a false FIR against the respondent and his parents, on the basis of which Mushalpur P.S. Case No. 86/2020 was registered under Sections 498A/506 of the Indian Penal Code, 1860. It is also stated that in the aforesaid case, the respondent and his parents had to appear before the Mushalpur Police, which caused severe mental harassment to them.

[8] It is also alleged that the present appellant had stated to the respondent that she is ready to withdraw the case if any of the two options given by her is agreed to by the respondent, namely to arrange a residential accommodation for the appellant at Guwahati or to pay Rs 20,000/- as monthly maintenance to her. It was further alleged in the divorce petition by the present respondent

that due to the continuous aggressive and malicious attitude of the present appellant, the respondent had to spend his days under constant fear of life, reputation and in mental harassment and, as such, the marriage between him and the appellant has broken down irretrievably without any scope of reunion between them. On those grounds, a decree of divorce was prayed for.

[9] The present appellant contested the divorce case by filing a written statement wherein she has denied the allegations made by the respondent against her in his divorce petition. She has stated in her written statement that she was subjected to torture and physical and mental cruelty by the respondent and his parents.

Mat.App./55/2023 Page 4 [10] She also alleged that she was demanded dowry of Rs 5,00,000/-

(Rupees Five Lakhs only) by the respondent and his parents. She has further stated that on 08.08.2020, the respondent along with his parents had assaulted her badly. As such, she had to leave her matrimonial home on 09.08.2020. She has further alleged that the parents of the respondent even asked the respondent to burn the appellant by pouring kerosene oil over her. As a result of which, she was compelled to lodge FIR before the Mushalpur Police Station and on the basis of this said FIR, Mushalpur P.S. Case No. 86/2020 was registered. She has also contended in the written statement that as the appellant was unable to maintain herself and her minor daughter, she was compelled to file an application before the court under Section 125 of the Code of Criminal Procedure, 1973 seeking maintenance against the present respondent.

[11] On the basis of the pleadings of respective parties, the trial court framed the following issues: -

1. Whether there is cause of action for the divorce suit?
2. Whether the respondent used to rudely behave the petitioner and his parents without any lawful grounds since after their marriage?
3. Whether the respondent subjected the petitioner to mental harassment?
4. Whether the respondent, without any lawful and justified grounds, withdrew herself from the society of the petitioner?

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5. Whether the petitioner is entitled to decree of divorce?
6. To what other relief/reliefs the parties are entitled to?

[12] During trial, the present respondent adduced evidence of three witnesses in support of his contention. Whereas, the present appellant also adduced witness of three defence witnesses. However, the evidence-on-affidavit filed by DW-2 was expunged as he did not appear before the trial court to face cross-examination.

[13] Ultimately, by the judgment which has been impugned in this appeal, the trial court had decided all the issues against the present appellant and granted the decree of divorce, as prayed for by the respondent in the T.S.(M) Case No. 08/2020.

[14] Mr. G.N. Sahewalla, the learned senior counsel for the appellant has submitted that the trial court had erred in granting the decree of divorce without discussing in the impugned judgment as to how the present appellant had subjected the respondent to cruelty. He submits that in Paragraph No. 20 of the impugned judgment, the trial court has reasoned that merely because the appellant had filed several cases against the respondent and merely because that in the police case lodged by her, she had alleged that her in-laws subjected her to cruelty as she gave birth to a female child, whereas in the written statement before the trial court, she took the plea that the parents had subjected her to cruelty by demanding dowry, the trial court without any basis came to the finding that the appellant has mentally harassed the respondent only because of the filing of several cases.

Mat.App./55/2023 Page 6 [15] The learned senior counsel for the appellant submits that the circumstances, which the appellant had to face due to ill-treatment by her in-laws as well as by the respondent, she was compelled to file several cases. However, he submits that merely the fact of filing cases cannot be regarded as "cruelty" within the meaning as given to the said phrase under Section 13(1)(i-a) of the Hindu Marriage Act, 1955. He further submits that the respondent in the meanwhile had married the same girl after getting the decree of divorce with whom the present appellant had suspected him of having illicit relationship. He also submits that by marrying during the pendency of the instant appeal, the respondent has violated the provision of Section 15 of the Hindu Marriage Act, 1955 and such a marriage by the respondent during the pendency of this appeal is not lawful and shall have to be treated as illegal.

[16] In support of his submission, the learned senior counsel for the appellant has cited a ruling of Apex Court in the case of "Anurag Mittal Vs. Shaily Mishra Mittal" reported in "(2018)9 SCC 691."

[17] The learned senior counsel for the appellant has submitted that though the case instituted on the basis of FIR lodged by the present appellant against the respondent and his parents under Section 498A of the Indian Penal Code, 1860 has resulted in acquittal, however, the fact that the appellant had to leave her matrimonial home due to ill-treatment by the respondent and his parents is not deniable. He further submits that the evidence of DW-1 which was not considered by the trial court, clearly indicates that the father of the appellant had petitioned before the Sripur Devargaon Unnayan Mat.App./55/2023 Page 7 Samiti for settling the matrimonial dispute between the appellant and her husband, which clearly implies that the appellant is intending to continue with the matrimonial relationship. He further submits that since the circumstances had compelled the appellant to file cases, the said act of filing of cases against the respondent and his parents, in itself, cannot be regarded as an instance of cruelty.

[18] He submits that the term "cruelty" has to be interpreted considering the facts and circumstances of a particular case. He also submits that merely because in the matrimonial disputes between the parties, allegations and counter-allegations were made against each other, it would not necessarily should lead to a decree of divorce. He also submits that mere lapse of time can also not

be a ground for granting decree of divorce. He also submits that the irretrievable breakdown is not a ground which is statutorily recognized under the Hindu Marriage Act, 1955 for the grant of divorce between the parties who are Hindus.

[19] The learned senior counsel for the appellant has also submitted that the trial court also failed to take into consideration the fact that there is a daughter, who has born out of the wedlock between the parties and dissolution of marriage of her parent would have a negative impact on her future also. He submits that the trial court, without considering the fact that the respondent has failed to show that the alleged cruelty by the present appellant towards him or his parents was of such a degree that it may not be possible for him to tolerate the same and continue the marital life with her. He, Mat.App./55/2023 Page 8 therefore, submits that the impugned judgment is liable to be set aside.

[20] In support of his submission, the learned senior counsel for the appellant has also cited following rulings:-

1. "Samar Ghosh Vs. Jaya Ghosh" reported in "(2007)4 SCC 511."
2. "V.Bhagat Vs. D Bhagat" reported in "(1994)1 SCC 337."

[21] On the other hand, Mr. T. Kalita, the learned counsel for the respondent, has fairly submitted that after getting decree of divorce, the appellant has married another woman. He submits that the trial court has rightly granted the decree of divorce in the Title Suit (Divorce) which was filed by the present respondent, after considering the evidence on record and, hence, same is not required to be interpreted by this court in exercise of its appellate jurisdiction.

[22] He submits that the false cases filed by the present appellant against the respondent and his parents, namely, PRC Case No. 47/2021, and under Sections 498A / 34 of the Indian Penal Code, 1860 and C.R. Case No. 114 / 2021 under Section 494 of Indian Penal Code, 1860, have been ended in acquittal of the respondent and his parents. He submits that the fact of filing false cases by the appellant against the respondent which have ended into acquittal is in itself sufficient to hold that the respondent was subjected to mental cruelty by the present appellant by filing false cases against him and his parents. He, therefore, submits that it is not possible for Mat.App./55/2023 Page 9 the respondent to continue the marital life with the appellant any further and the trial court has rightly recognized this fact and has, accordingly, granted the decree of divorce.

[23] The learned counsel for the respondent also submits that the fact of filing several cases back-to-back against the respondent by the appellant only for the purpose of harassing him is also an instance of inflicting mental cruelty on the respondent. He submits that the trial court has, therefore, rightly held that the respondent was subjected to mental cruelty which has irreparably broken down the marriage between the respondent and the appellant and has rightfully granted the decree of divorce. He also submits that in the meanwhile, the appellant has already started another

conjugal life and allowing the appeal would have impact on the life of the newly married wife of the respondent also. He, therefore, prays for dismissing the instant appeal. In support of his submission, the learned counsel for the respondent has cited following rulings:-

1. "K. Srinivas Rao Vs. D.A. Deepa" reported in "(2013) 5 SCC 226;"

2. "Rani Narashimha Shastry Vs. Rani Suneela Rani"

reported in "(2020) 18 SCC 247."

[24] I have considered the submissions made by the learned counsel for both sides. I have also gone through the materials available on record. I have also gone through the rulings cited by learned counsel for both sides in support of their respective submissions.

Mat.App./55/2023 Page 10 [25] Section 13 (1)(i-a) the Hindu Marriage Act provides that a marriage solemnized before or after the commencement of Hindu Marriage Act may, on a petition presented by either the husband or the wife, be dissolved by a decree of divorce on the ground that the other party has, after the solemnization of marriage, treated the petitioner with cruelty. Where divorce is sought for on the aforesaid ground, it is incumbent on the trial court to inquire into the fact as to whether the conduct charged as cruelty is of such a character as to cause in the mind of the petitioner a reasonable apprehension that it will be harmful or injurious for him to live with the respondent.

[26] In the case of "Samar Ghosh Vs. Jaya Ghosh" (supra) the Supreme Court of India has observed as follows:-

"99. Human mind is extremely complex and human behaviour is equally complicated. Similarly human ingenuity has no bound, therefore, to assimilate the entire human behaviour in one definition is almost impossible. What is cruelty in one case may not amount to cruelty in other case. The concept of cruelty differs from person to person depending upon his upbringing, level of sensitivity, educational, family and cultural background, financial position, social status, customs, traditions, religious beliefs, human values and their value system.

100. Apart from this, the concept of mental cruelty cannot remain static; it is bound to change with the passage of time, impact of modern culture through print and electronic media and value system, etc. etc. What may be mental cruelty now may not remain a mental cruelty after a passage of time or vice versa. There can never be any Mat.App./55/2023 Page 11 straitjacket formula or fixed parameters for determining mental cruelty in matrimonial matters. The prudent and appropriate way to adjudicate the case would be to evaluate it on its peculiar facts and circumstances while taking aforementioned factors in consideration."

[27] Thus, to ascertain as to whether a particular conduct or a set of facts alleged to have been committed by the defendant in a divorce suit amounts to cruelty or not has to be ascertained on the basis of peculiar facts and circumstances of the said case and no straitjacket formula is there to ascertain the conduct which may amount to cruelty in a particular case.

[28] In the instant case, it is an admitted fact that though the appellant and the respondent were having love affairs before their marriage and were known to each other since their school going days, however, there was an opposition to their marriage by the parents of the respondent. As such, it may be presumed that after the marriage, initially, the appellant might have faced a hostile environment in her matrimonial home.

[29] Further, the allegation against the appellant made in the divorce petition that on postponement of her marriage due to some family problems faced by the respondent she misbehaved with the respondent and also attempted to commit suicide, the details of which has been stated by the respondent in Paragraph No.2 of his evidence-on-affidavit submitted before the trial court in the T.S.(M) No. 08/2020 pertains to the incidents which occurred prior to marriage. Whereas, under Section 13 (1) (i-a) of the Hindu Marriage Mat.App./55/2023 Page 12 Act, 1955 the cruelty has to be perpetrated on the petitioner "after the marriage" to be regarded as a ground for divorce under the aforesaid provision. Hence, the facts stated in Paragraph No.2 of the evidence-on-affidavit filed by the respondent before the trial court are not relevant for the purpose of considering as to whether same may be regarded as acts of cruelty or not.

[30] As regards the allegation against the appellant made by the respondent in his divorce petition as well as in Paragraph No. 5 of his evidence-on- affidavit that the appellant accused the respondent of having relationship with his own elder sister and mother are very general in nature without specifying as to what was said by the present appellant in that regard and when such allegations were levelled. Without mentioning any specific instances of levelling such accusations against the respondent, it may not be possible for the trial court or for this court to ascertain as to what was alleged to have been stated by the appellant amounts to cruelty or not.

[31] Further, it also appears from record that the impugned judgment was delivered by the trial court on 16.08.2023, whereas the judgment in cases filed by the present appellant under Sections 498A/34 i.e., P.R.Case No. 47/2021 was delivered on 10.09.2024 i.e., much after the delivery of the impugned judgment as well as judgment in C.R.Case No. 114/2021 under Section 494 of Indian Penal Code was also delivered on 08.09.2023, i.e., also after the delivery of the impugned judgment.

Mat.App./55/2023 Page 13 [32] Hence, at the time when the judgment in the divorce case was delivered by the trial court, the judgments in cases filed by the appellant were not delivered and the trial court in Paragraph No. 20 of the impugned judgment had come to a finding that by merely filing of different cases, the present appellant harassed the petitioner and her parents. However, the circumstances under which the appellant had to file various cases against the respondent were not discussed by the trial court.

[33] This court is of considered opinion that mere filing of criminal cases in itself may not amount to subjecting the respondent to cruelty. If the circumstances under which the aforesaid cases were filed were such that the cases were filed only for the purpose of harassing the respondent, then certainly there may be some element of relevancy of such facts. Then the matter would have been different. However, in the instant case, the testimony of DW-1 wherein the present appellant has highlighted the instances of ill-treatment by the in-laws as well as by the present respondent, shows the circumstances under which she had to file different cases against the present respondent. Even if the judgment in the cases filed by the appellant would have been declared prior to the passing of the impugned judgment in the instant case, the mere fact that the respondent is acquitted of the charges levelled against him by the appellant in itself may not amount to cruelty unless there are materials on record from which court may unerringly come to a conclusion that the allegations levelled against the respondent by the appellant Mat.App./55/2023 Page 14 were absolutely false. However, that is not the case in the instant case.

[34] Hence, this court is of considered opinion that the trial court had erred by holding that by merely filing different cases against the respondent, the appellant intended to harass him and have subjected him to cruelty, justifying warranting dissolution of their marriage.

[35] Further, the respondent, by marrying for the second time during the pendency of the instant appeal, has violated the provision of Section 15 of the Hindu Marriage Act, 1955.

[36] In this regard, the Apex Court has observed in the case of "Anurag Mittal Vs. Shaily Mishra Mittal" (supra) as follows, "27. Section 15 of the Act provides that it shall be lawful for either party to marry again after dissolution of a marriage if there is no right of appeal against the decree. A second marriage by either party shall be lawful only after dismissal of an appeal against the decree of divorce, if filed. If there is no right of appeal, the decree of divorce remains final and that either party to the marriage is free to marry again. In case an appeal is presented, any marriage before dismissal of the appeal shall not be lawful. The object of the provision is to provide protection to the person who has filed an appeal against the decree of dissolution of marriage and to ensure that the said appeal is not frustrated. The purpose of Section 15 of the Act is to avert complications that would arise due to a second marriage during the pendency of the appeal, in case the decree of dissolution of marriage is Mat.App./55/2023 Page 15 reversed. The protection that is afforded by Section 15 is primarily to a person who is contesting the decree of divorce."

[37] Under aforesaid circumstances, the respondent cannot take advantage of his own wrong by taking plea that if the decree of divorce is set aside, it may affect the future of his newly married wife. As the second marriage by the respondent is apparently illegal, as same was done during the pendency of the instant appeal.

[38] In view of the discussions made and reasons cited in the foregoing paragraphs, this court is of considered opinion that the trial court erred in holding that the respondent has been able to show that he was subjected to cruelty by the present appellant so as to justify a grant of decree of divorce under Section 13 (1) (i-a) of the Hindu Marriage Act 1955.

[39] The impugned judgment is, therefore, liable to be set aside. The impugned judgment is, accordingly, set aside. The decree of divorce granted by the impugned judgment is, accordingly, set aside.

[40] This appeal is, accordingly, allowed.

[41] Considering the facts and circumstances of this case, no cost is imposed and parties are left to bear their own cost.

[42] Send back the records of the trial court, along with a copy of this order.

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JUDGE

Comparing Assistant

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